FIRST AMENDMENT TO AFFORDABILITY COVENANT

Cannery Flats · 8 Wharf Lane, Port Wren, Osprey County

This First Amendment is made on November 6, 2023 by Cannery Flats Housing Partners LLC (the "Owner") and the Town of Port Wren (the "Town"). It changes the Affordability Covenant dated May 20, 2019 (the "Covenant").

1. Why the Covenant is being changed

The Owner asked to reduce the number of restricted apartments after flood repairs raised its costs. The Town agreed in return for a longer Covenant.

2. Number of restricted apartments

Section 2.1 of the Covenant and Schedule 1 are replaced with the following sentence.

> The Owner shall keep 18 of the 140 apartments in the building as restricted apartments.

3. End date

The end date in Section 5.1 of the Covenant is changed from June 30, 2049 to June 30, 2059.

4. Everything else

All other parts of the Covenant stay as written.

Electronically signed by Cannery Flats Housing Partners LLC, by its Managing Member, on November 2, 2023.

TOWN OF PORT WREN
/s/ Town Administrator
November 6, 2023